



PT Asian Bulk Logistics – Engage Marine

MN-90012

Phase 1 Determination

Acquisition may be put into effect

24 June 2026

1. Determination and statement of reasons

Notified acquisition	PT Asian Bulk Logistics, through its Australian subsidiary, Global Engage Marine Pty Ltd (ABL) proposes to acquire Engage Marine TopCo Pty Ltd (Engage Marine) (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABZE(1) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition may be put into effect.
Parties to the Acquisition	The acquirer, ABL operates three subsidiaries in Australia: ▪ Transshipment Services Australia, which provides bulk cargo transshipment services utilising floating barges to transfer materials, such as iron ore, directly between smaller ships or shallow terminals and larger ocean-going vessels in deepwater berths. ▪ One Rail Australia, a rail freight operator operating in NSW and central Queensland, specialising in transporting bulk commodities such as coal and minerals. ▪ SCF Containers, an Australian shipping container supplier offering a wide range of products for hire or sale, including shipping containers, site sheds, dangerous goods containers, tank and refrigerated containers, intermodal containers, trailers, and remote camps. The target, Engage Marine, provides terminal and harbour towage (towage services) including the berthing and sailing of ocean-going vessels at ports across Australia. Engage Marine also provides ad-hoc towage emergency response solutions in salvage situations. Transshipment in this context refers to a logistics service concerned with getting a mined commodity from land to an ocean-going vessel.
Overlap and relationship between the parties	The merger parties have a vertical relationship with Engage Marine's towage services being an input into the supply of transshipment services in some circumstances.
Reasons for determination	When making a determination in Phase 1, the Australian Competition and Consumer Commission (ACCC) undertakes a competition assessment and considers whether it is appropriate for an acquisition to be approved or subject to further assessment in Phase 2 in accordance with section 51ABZJ of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). In doing so, the ACCC must have regard to the object of the Act and all relevant matters, including the interests of consumers. For more information about the ACCC's approach to considering notified acquisitions, see the ACCC's merger assessment guidelines and interim merger process guidelines. In conducting its competition assessment, the ACCC has considered the information and documents that were submitted with the notification form, information from third parties and publicly available information. The ACCC has determined that the Acquisition may be put into effect as it considers that the Acquisition is unlikely to have the

	effect of substantially lessening competition in any market. In reaching its decision, and based on the material before it, the ACCC makes the following findings. • The merger parties are not close competitors in the supply of transshipment or towage services. • A vertical relationship between towage services and transshipment services may arise at a port. However, the merged firm is unlikely to have the ability and incentive to foreclose rival transshipment service providers post-acquisition. ○ This is because there are alternative options to Engage Marine available to transshipment providers at those ports where there is a current demand for transshipment services. Those options include alternative towage service providers currently operating at the port or the ability of some transshipment customers to sponsor a new provider of towage services to deliver the services they require at that port.
Applications for review	A notifying party, or other person who has been allowed to do so by the Australian Competition Tribunal, may apply for review if they are dissatisfied with the determination. Pursuant to section 100C of the Act, applications for review of the determination are to be made to the Australian Competition Tribunal before the end of 14 calendar days after this statement of reasons was included on the ACCC's Acquisitions Register. To confirm whether there has been any application for review, please contact the Australian Competition Tribunal.

Determination made by Commissioner Philip Williams pursuant to a delegation under section 25(1) of the Act